

**SUBSTITUTE FOR
HOUSE BILL NO. 5680**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending sections 47328 and 47330 (MCL 324.47328 and 324.47330),
as added by 1995 PA 57.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 47328. A person shall not use any kind of a boat, tug, or
2 launch, except when used in hook and line fishing, or any kind of
3 net or nets, set hook lines, or commercial trolling rigs for the
4 purpose of taking, catching, killing, or transporting fish in any
5 of the waters bordering on this state, regardless of whether for
6 commercial purposes or for personal use, without first having
7 applied for and been issued a license for that activity, in
8 accordance with this part. ~~A license, except as otherwise provided~~



1 ~~by law, is not required of persons engaged in sport trolling in~~
 2 ~~these waters, except that the owners of boats operated with either~~
 3 ~~an inboard or outboard motor and offered for hire in sport trolling~~
 4 ~~for lake trout shall obtain a license for each boat. A license,~~
 5 except as otherwise provided by law, is not required of persons
 6 engaged in taking fish with set lines in lake St. Clair as provided
 7 in section 47302.

8 Sec. 47330. (1) ~~The department, when application is made by~~
 9 ~~any~~ **If a person submits an application** in accordance with section
 10 47329, **the department** shall issue the license provided for in this
 11 part ~~upon payment by~~ **if** the applicant, ~~if a resident of this~~
 12 ~~state, of~~ **pays** the following fees:

13 (a) For fishing with set hook lines or nets, with or without a
 14 boat not exceeding 16 feet in overall length, ~~or a boat used in~~
 15 ~~sport trolling for lake trout for hire,~~ \$16.00 per year. Any person
 16 using more than a single crew consisting of not more than 4 people
 17 in fishing nets or hooks under the ice shall secure a license for
 18 each crew member. The department, ~~upon~~ **on** proper application, shall
 19 issue with each license to fish nets or set hook lines under the
 20 ice 4 identification cards bearing the number of the license and
 21 the year for which **the license was** issued. Each member of a single
 22 crew engaged in the setting, lifting, or pulling of nets, set hook
 23 lines, or other devices, set under the ice under authority of the
 24 license, shall carry the card on ~~his or her~~ **the member's** person at
 25 all times while so engaged and upon demand of any conservation
 26 officer shall exhibit the card. Minnow seines and dip nets are
 27 exempt from this section.

28 (b) For each rowboat, sailboat, powerboat, motorboat,
 29 steamboat, or scow used in catching, killing, taking, or



1 transporting fish caught with nets, set hook lines, or trolling
 2 rigs, \$3.00 per foot overall length, and \$1.00 per ton additional
 3 for each ton over 10 gross tons. A license is not required for a
 4 scow used only in transporting nets. Each license for a boat
 5 propelled by sail, steam, gas, or other mechanical power entitles
 6 the licensee to operate a rowboat not exceeding 16 feet in overall
 7 length. Each rowboat ~~shall~~**must** bear the same identification as the
 8 boat for which the license is issued and ~~shall~~ be used only while
 9 attending the boat. A ~~resident~~ person shall not pay less than
 10 \$50.00 or more than \$200.00 on any 1 boat in any 1 license year.

11 (2) ~~For a nonresident of this state, the fee shall be 5 times~~
 12 ~~the fee required of a resident in accordance with the schedule~~
 13 ~~prescribed in this section.~~ A license under section 47329 ~~shall~~
 14 **must** not be issued to a nonresident for fishing in Lake Erie and
 15 Lake Huron except at the discretion of the department.

16 (3) For the purpose of this part, a nonresident is any person
 17 who has not actually resided in this state for 3 years immediately
 18 ~~prior to~~**before** the date of application for a license, any person
 19 applying for a license for use of nets or a boat registered or of
 20 record at a port outside of the state, or any firm, company,
 21 copartnership, partnership, association, or corporation in which
 22 any of their stock, boats, nets, and fishing equipment has been
 23 owned by nonresident persons at any time during the 3 years
 24 immediately ~~prior to~~**before** the date of application for a license.

